

**United States Department of Agriculture
Justification for Other than Full and Open Competition
Identification Number: 1240LT26Q0040**

Pursuant to the requirements of the Competition in Contracting Act as implemented by Revolutionary Federal Acquisition Regulation (FAR) Overhaul (RFO) FAR Part 6 and in accordance with the requirements of RFO FAR 6.104-1, the justification for the use of the statutory authority cited herein is supported by the following facts and rationale:

(1) Mission Area and Contracting Activity.

The United States Department of Agriculture, Forest Service, National Procurement Operations, proposes to enter into a contract on a basis other than full and open competition.

(2) Nature and/or description of the action being approved:

This J&A authorizes and approves the award of a firm-fixed price contract for the procurement of an emergency sewer line repair to ensure public health and safety. This repair is essential for protecting and reestablishing full function of the living quarters (USDA FS property). This emergency repair will be a construction contract and will be procured utilizing the procedures listed in 41 U.S.C. 3304(a)(2), as implied by FAR 6.103-2 "Unusual and compelling urgency"

(3) A description of the supplies or services required to meet the agency's needs (including the estimated value).

This construction contract will provide the sewer repair needed to return the Paonia Ranger District's living quarters sewer system to a fully functional state. The construction shall be performed by contractor(s) licensed in the State of Colorado and will include replacing broken clay sewer pipe approximately 76-feet in length with a 4-inch diameter PVC pipe, excavation through approximately six-feet of asphalt road owned by the Town of Paonia, pipe connections from existing residential sewer line to Town of Paonia's main sewer line, installation of two clean outs, backfilling of all open trenches, road repairs, and acquisition of all permits required to perform the work. The IGCE for this contract is \$22,250.

(4) Identify the statutory authority permitting other than full and open competition.

The statutory authority permitting other than full and open competition is 10 U.S.C. 2304(c) (1) as implemented by FAR FAR 6.103-2, Unusual and Compelling Urgency.

(5) Demonstrate that the proposed contractor's unique qualifications or the nature of the acquisition requires using the authority cited.

The broken sewer line for the bunk house is preventing the current tenants from using the facilities and all the other bunk houses are occupied causing a health hazard. To assess the situation, the sewer line has been excavated from the bunk house's exterior to the property line by the road, and there is now an open trench. The open trench is coned off, but the open trench should not be left open any longer than is necessary to reduce the chance of injuries. Furthermore, the repair needs to be made quickly to allow continuation of Forest operations, and to allow full use of the bunk house facilities. The current contractor identified, DARE-CASE Contracting Services, has the capabilities and expertise, and can respond immediately to assess and replace the current sewer line. DARE-CASE has worked on past projects for this Forest and has knowledge of the area and facilities. They have extensive experience in new and existing construction, renovations, remodels, boiler replacement work and mobilizing quickly to assess emergencies all in various project sizes. Their experience demonstrates the ability to work on

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many different aspects of projects and have the knowledge of issues that can arise when coming into existing projects.

(6) A description of the market research conducted, and the results or a statement of the reason Market Research was not conducted.

Market research was conducted to identify sources that could meet the government's requirements. The market research was documented using the Streamlined Acquisition Plan Market Research form, using multiple market research sources identified in the form. The Streamlined Acquisition Plan Market Research form was included in the procurement request. Market research determined that there are vendors who appear capable of meeting this requirement but meeting the timelines and reducing the impacts to the Forest Service building are the unknowns if this was competed on Sam.gov.

(7) A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition of the supplies or services required.

To enhance competition and remove barriers for subsequent acquisitions, the Forest Service can engage with contractors and provide contractors with information regarding enrollment in SAM and acquisition of a UEI number so that they can bid on future Government solicitations when situations like this arise.